

TENTATIVE RULING(S) FOR June 3, 2026

Department S37 – Judge Winston Keh

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You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVDS1928626

Uribe vs Sanchez

TENTATIVE RULING(S):

Before the Court is Defendant's Motion to Set Aside and Vacate Default Filed on July 22, 2025 (Motion), supported by a declaration from Sergio Rodriguez (Rodriguez). On May 20, 2026, Plaintiff filed his Opposition to the Motion (Opposition). No reply has been filed as of 8:35 am on June 2, 2026.

The Merits of Defendant's Motion

Defendant motions for the court to set aside the default entered on July 22, 2025 pursuant to section 473, subdivision (b) of the Code of Civil Procedure. Defendant contends he is entitled to the subject relief as default was entered without the Plaintiff's counsel providing proper notice to Defendant. Further, Defendant contends Plaintiff's counsel acknowledged that he received

Defendant's Answer and failed to inform Defendant's counsel of his intent to file a request to enter default. Citing *LaSalle v. Vogel* (2019) 36 Cal.App.5th 127 (*LaSalle*), Defendant argues Plaintiff's failure to provide notice to Defendant's counsel, especially when the Plaintiff was aware of his representation, can be considered as bad faith and a violation of professional courtesy that undermines due process. Defendant further argues relief is appropriate here as default was due to surprise or excusable neglect and cites to authority that indicates public policy strongly favors the court exercising its discretion in favor of granting relief.

In his Opposition, Plaintiff argues Defendant does not qualify for relief under Code of Civil Procedure sections 473 and 473.5 and there is no basis for equitable relief. Citing *Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, Defendant argues relief is not available under section 473 as while the instant Motion was filed on January 21, 2026, the last day of the six-month period following Plaintiff's entry of default, Defendant failed to pay the filing fee at the time he filed his Motion. Citing cases such as *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, Plaintiff argues it is mandatory for court clerks to demand and receive the fee required by statute before documents or pleadings are filed. Plaintiff further contends Defendant is not eligible for relief under section 473.5 as Defendant was properly served with the Summons in this action. Finally, Plaintiff argues Defendant's reliance on *LaSalle* is misplaced as the defendant in *LaSalle* filed her motion to set aside within the six-month period prescribed by Code of Civil Procedure section 473. Plaintiff contends on July 22, 2025, counsel informed Defendant's counsel that an internal review of Plaintiff's case file had revealed that Defendant had not filed an Answer to the Complaint, and that Plaintiff would be filing a request for entry of default. Further, Plaintiff filed and served a Request for Entry of Default with a Proof of Service attesting to the fact that the document was served. As for Defendant's contention that Plaintiff's counsel previously represented that they received an Answer from the Defendant, Plaintiff's counsel explained this was an error and counsel had confused Defendant's motion to stay as an Answer.

Under section 473, subdivision (b), the court may relieve a party or his representative from a dismissal taken against him due to mistake, inadvertence, surprise, or excusable neglect.

(Code Civ. Proc., § 473, subd. (b).) Defendant argues relief should be granted on the grounds of surprise or excusable neglect. As set forth in Rodriguez's declaration filed in support of the instant Motion, Defendant was unaware the subject default had been entered against him and attempted to file an Answer on July 25, 2025.

When the defaulting party moves promptly to seek relief and the opponent to such request has or will suffer little prejudice, very slight evidence is required to justify setting aside a default.

(Ibid.; *Shamblin v. Brattain* (1988) 44 Cal.3d 474, 478.) Here, the instant Motion reflects the timely filing of the instant Motion on January 21, 2026. Plaintiff submits no evidence to support his contention that the instant Motion was not timely filed. The court docket reflects that a motion to vacate judgment was rejected by the clerk due to a failure to pay first appearance fees, but the instant Motion reflects a filing date of January 21, 2026. Given the instant Motion was timely filed and Plaintiff fails to show it will suffer any prejudice, the Court finds Defendant has provided the requisite "slight evidence" to support granting the instant Motion.

RULING

Based on the foregoing analysis, the Court rules as follows:

(1) Grants Defendant's Motion and deems the proposed Answer as filed and served as of June 3, 2026.

(2) Vacates OSC re Default Prove Up

Given the age of this case, the Court intends to conduct a Trial Setting Conference after the hearing on this motion.